



REQUEST TO EXPUNGE AND/OR SEAL CRIMINAL RECORDS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where You Are Filing the Case

REQUEST OF: _____

Your First, Middle, and Last Name

Other Names Used In These Cases

Date of Birth

Race

Gender

Case Number

*(if the Circuit Clerk assigns
a new number)*



When you have **finished** filling out this form, **fill out the *Case List for Request to Expunge and/or Seal Criminal Records* form** with all the arrest and case numbers you are asking to be expunged and/or sealed.

The *Case List* form **must be filed** at the same time you file this *Request* form.

REQUEST TO EXPUNGE CRIMINAL RECORDS



If you are only requesting to **seal** criminal records, **do not** fill out this section. **Skip** this section and go to **Request to Seal Criminal Records** starting in **page 4, Section 12**.

1. I am requesting to **expunge** records.

☐ Yes

☐ No *(If no, skip to Request to Seal Criminal Records starting in Section 12 on page 4.)*

2. I ask the Court to **EXPUNGE** the following arrests or charges from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police. I was arrested, or charged without being arrested, and not convicted on the dates and for the offenses listed below on page 2:

- Use the instructions at ilcourts.info/how-to-expunge-adult to fill out the table on page 2 and to make sure all of your cases can be erased by expunging your record.
- **Do not list any convictions in this section.**
- Enter all eligible arrests or charges on your record.
- Enter all charges for each case number.
- For **Outcome**, enter an outcome that reflects the outcome for each charge or case. Use the shortened version of the outcome from the Outcome Abbreviations for Expungement section on page 2.

	Arrest or Case Number	Arresting Agency	Charge (list all charges for each case number)	Date of Arrest	Outcome (for example, RV, S or P)
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					

Outcome Abbreviations for Expungement

RV	Conviction Reversed or Vacated	P	Pardon from the Governor
CE	Certificate of Eligibility for Expungement from PRB	FI	Found Factually Innocent
RWC	Released Without Charge	DA	Dismissal or Acquittal
S	Supervision Successfully Completed	QP	Qualified Probation Successfully Completed

If you need more room, use the Additional Arrests or Cases for Expungement form and check the box.

☐ I have listed **additional arrests or cases** on the Additional Arrests or Cases for Expungement form.

In Sections 3 - 11, check any boxes that apply.

- 3.** I was not convicted of any offenses I want to expunge. Or I was convicted, but one of the checkboxes below applies (check the box that applies):

You cannot expunge a criminal conviction unless one of the special situations listed under checkboxes **a**, **b**, **c**, or **d** describes your case.

- a.** ☐ I was convicted, but the conviction was reversed or vacated; OR
- b.** ☐ I received a pardon from the Governor of the State of Illinois allowing expungement. (Attach a copy of the pardon.); OR
- c.** ☐ I received a Certificate of Eligibility for Expungement by the Prisoner Review Board. (Attach a copy of the Certificate.); OR
- d.** ☐ I was found by a court that I am factually innocent in the case I am asking to expunge.

4. ☐ For at least one case, I was arrested and released, and no charges were filed against me.
In 4, check the box if you were arrested or brought into the police station, but you were released and no charges were ever filed against you.
5. ☐ For at least one case, I was arrested for a minor traffic offense and released from custody without being charged.
6. ☐ For at least one case, I participated in a problem-solving court, pre-plea diversion, or post-plea diversion program; AND
- ☐ I have successfully completed this program; OR
 - ☐ I am anticipating the successful completion of this program within 61 days of filing this request to expunge.

In 6, check the box if you have participated in a problem-solving court, pre-plea diversion, or post-plea diversion program. Once you have successfully completed the program and the criminal case has been dismissed, the court will review your request to expunge it.

7. ☐ For at least one case, I was charged, but was later acquitted or the case was dismissed.
In 7, check the box if you were charged but: you were found not guilty; or the charges were dropped and you were not sentenced to supervision or probation (nolle prosequi, Stricken Off With Leave to Reinstate (SOL), non-suit, or dismissal); or the court issued a finding of no probable cause.
Note: these terms are defined on page 19 of the instructions: ilcourts.info/how-to-expunge-adult

8. ☐ For at least one case, I received a sentence of Qualified Probation and at least 5 years have passed since my Qualified Probation ended successfully.
This might also be called Second Chance, 410, 710, 1410, or TASC probation.

9. ☐ For at least one case, I received a sentence of supervision; AND
- ☐ For certain offenses listed in the law, at least 5 years have passed since I completed my supervision successfully; OR
 - ☐ At least 2 years have passed since I completed my supervision successfully.

If you got supervision for any case, 5 years must have passed since the end of the sentence for:

- Domestic Battery
- Criminal Sexual Abuse
- Driving without Insurance
- Driving with Registration Suspended for Non-Insurance
- Display of False Insurance Card
- Scrap Processors to Keep Records

OR 2 years must pass since the end of the sentence for all other supervisions (except those listed in Section 10, which can never be expunged).

10. ☐ I am NOT seeking to expunge any arrests or charges that resulted in supervision for:
- Driving Under the Influence; OR
 - Any sexual offense against a person under the age of 18; OR
 - Reckless Driving when I was 25 years of age or older.
11. ☐ For at least one case, I received a sentence of supervision for Reckless Driving; AND
- I was under the age of 25 when the offense was committed; AND
 - I have no other convictions for DUI or Reckless Driving; AND
 - I have reached the age of 25.

REQUEST TO SEAL CRIMINAL RECORDS

If you are only requesting to **expunge** cases, **check the "No" box in Section 12, skip to the bottom** of the form and sign it.

12. I am requesting to **seal** records.

☐ Yes ☐ No (If no, **skip** Sections 13 - 23.)

13. I ask the Court to **SEAL** the following arrests, charges, or convictions from the records of the Arresting Agency, the Circuit Clerk, and the Illinois State Police:

- Use the information on pages 16 - 18 of the instructions at ilcourts.info/how-to-expunge-adult to fill out this table and to make sure all of your cases can be hidden by sealing your record.
- Enter all eligible arrests, charges, and convictions you want sealed.
- Enter all charges for each case number.
- For **Outcome**, enter an outcome that reflects the outcome for each charge or case. Use the shortened version of the outcome from the Outcome Abbreviations for Sealing section below.

	Arrest or Case Number	Arresting Agency	Charge (list all charges for each case number)	Date of Arrest	Outcome (for example, MC, FC, CE)
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					

Outcome Abbreviations for Sealing

MC Misdemeanor Conviction

FC Felony Conviction

CE Certificate of Eligibility for Sealing from PRB

QP Qualified Probation Successfully Completed

If you **need more room** to list additional eligible arrests or charges use the Additional Arrests or Cases for Sealing form and check the box.

☐ I have listed **additional arrests or cases** on the attached Additional Arrests or Cases for Sealing form.

14. I am not asking to seal arrests or charges for minor traffic offenses, unless I was released without being charged.
The statement in 14 must be true for you to use this form. Traffic offenses cannot be sealed unless they were an eligible Class A or B misdemeanor.

In Sections 15 - 24, check all of the boxes that apply.

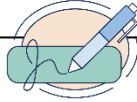
15. ☐ I am asking to seal a successfully completed sentence of Second Chance Probation (under [Section 5-6-3.4](#) of the Unified Code of Corrections) or First Time Weapon Offense Program ([730 ILCS 5/5-6-3.6](#)), for which there is no waiting period.

In Sections 16 – 19:

- Some misdemeanor supervisions and convictions cannot be sealed, like DUI, some Reckless Driving Offenses, Domestic Battery, some Sexual Offenses, and Dog Fighting. For a list of crimes that can be sealed see page 8 of the instructions: ilcourts.info/how-to-expunge-adult
- “Last sentence” means the latest completion date of any sentence you received in Illinois or any other state.

16. ☐ I successfully completed my supervision and **2 years** have passed since the end of my last sentence.
17. ☐ I received a **misdemeanor conviction** or ordinance violation for an offense subject to sealing and **2 years** have passed since the end of my last sentence.
18. ☐ I successfully completed a sentence under Section 10 of the Cannabis Control Act, Section 410 of the Illinois Controlled Substances Act, Section 70 of the Methamphetamine Control and Community Protection Act, or Offender Initiative Program (under Section 5-6-3.3 of the Unified Code of Corrections) and **2 years** have passed since the end of my last sentence.
19. I received a **felony conviction** for an offense subject to sealing AND at least one of these is true:
- a. ☐ I completed a sentence of conditional discharge or probation, the sentence was not revoked, AND **2 years** have passed since the end of my last sentence.
 - b. ☐ My sentence of conditional discharge or probation was revoked AND **3 years** have passed since the end of my last sentence.
 - c. ☐ I completed an Illinois prison or jail sentence AND **3 years** have passed since the end of my last sentence.
20. ☐ I am not asking to seal a felony conviction for which I currently have to register on a public registry, including the Arsonist Registration Act, the Sex Offender Registration Act, or the Murder and Violent Offender Against Youth Registration Act.
21. ☐ For at least one case, I received a Certificate of Eligibility for Sealing by the Prisoner Review Board.
(Attach a copy of the Certificate.)
22. ☐ I have completed my last sentence and may now ask the court to seal eligible felony convictions because *(all the following are true)*:
- a. I received a high school diploma, associate’s degree, career certificate, vocational or technical certification, bachelor’s degree, or passed the high school GED Test.
 - b. I did so during the period of my last sentence, aftercare release, or mandatory supervised release.
 - c. The felony conviction resulted in prison or jail, or conditional discharge or probation that was revoked.
 - d. I did not complete the same educational goal before.
 - e. I have attached proof of the program I completed to this *Request*.

23. ☐ I am eligible to seal all eligible cases upon completion of my LAST sentence because I am a trafficking victim as defined under [Section 10-9 of the Criminal Code of 2012](#), and as such:
- a. I was a victim of human trafficking when my last offense was committed; AND
 - b. My participation in the offense was a direct result of human trafficking under Section 10-9 of the Criminal Code of 2012 OR a severe form of trafficking under the federal Trafficking Victims Protection Act.
24. ☐ For at least one case, I received a conviction for Reckless Driving; AND
- a. I was under the age of 25 when the offense was committed; AND
 - b. I have no other convictions for DUI or reckless driving; AND
 - c. I have reached the age of 25.

SIGN

Under [735 ILCS 5/1-109](#), your signature means that:

- 1) everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and
- 2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ _____ Print Name _____

☐ I am completing this form for myself

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. #

City

State

Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ I am a lawyer completing this form on behalf of a client (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. #

City

State

Zip Code



Do not fill in the information below. This section is for official use only.

State's Attorney/Prosecutor/ISP/Arresting Agency/Chief Local Legal Officer:

Signature

Received on: _____
Date

WHAT'S NEXT

When you have finished filling out this form, **fill out the Case List for Request to Expunge and/or Seal Criminal Records next**. The Case List form **must** be filed at the same time you file this Request form.

After you fill out all of your forms, file them with the Circuit Court Clerk's office.

Find your Circuit Clerk here: ilcourts.info/clerks.



Learn more about each step in the process in the instructions: ilcourts.info/how-to-expunge-adult